

Athens, 07-11-2023

Protocol No. 2810

DECISION 33/2023

The Hellenic Data Protection Authority convened at the invitation of the President via teleconference on Tuesday, April 11, 2023, in order to examine the case referred to below in the background of this decision. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members of the Authority Spyridon Vlachopoulos as rapporteur, Charalampos Anthopoulos, Konstantinos Lamprinoudakis, Christos Kalloniatis, and Grigoris Tsolias. Present without voting rights were Anastasia Tritaki, legal auditor – lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With complaint No. Α/Γ/ΕΙΣ/6880/25-10-2021, the complainant A, in her capacity as Head of the Technical Service of Municipality X, protested before the Authority against Municipality X for the inclusion of her personal data in Decision No. ... of the Mayor of X (protocol No. ...), as well as for the posting of the aforementioned Decision in its entirety on the Diavgeia website (ADA: ...). Specifically, according to the complainant, the aforementioned decision contains references to her name, her position, the location of her work, as well as the submission of a complaint against her by a citizen and the subsequent conduct of a preliminary examination.

According to her claims, the complainant, with her application No. ... to Municipality X, requested the immediate withdrawal of the aforementioned Decision from the Diavgeia website; however, with the response/opinion of the Data Protection Officer of the Municipality dated ... (protocol No. ...), her request was rejected. With the same application, the complainant further protested against the reference of her personal data in the invitation No. ... for the convening of the Regular Economic Committee of Municipality X, which was published on the Municipality's website, while it was also distributed and posted digitally by the local press, as well as against the reference of her personal data in Decision No. ... of the Economic Committee of Municipality X (protocol No. ...), which was posted on the Diavgeia website (ADA: ...).

The Authority, in the context of examining the aforementioned complaint, sent to Municipality X the request No. Γ/ΕΞ/2829/19-11-2021 for comments. In response, it received the memorandum No. Γ/ΕΙΣ/8392/24-12-2021 from the data protection officer of Municipality X, which emphasizes, among other things, that the reference to the complainant's name in Decision No. ... of the Mayor of X (protocol No. ...) on the Diavgeia website (ADA: ...) was made in accordance with Article 24 paragraph 1 subparagraph d of Law 4624/2019, as it was deemed that the processing in question was permissible under the necessity of fulfilling the duties of the Mayor of X and was necessary to prevent serious harm to the rights of another person. Furthermore, according to the aforementioned memorandum, the posting of the aforementioned Decision took place following the opinion dated ... of the data protection officer of Municipality X, according to which the Mayor of X, as an organ of the Local Government Organization, is subject to Article 76 of Law 4727/2020 and has the obligation to post on the website of the Diavgeia program every act, decision, and document related to the execution of his duties; consequently, according to the aforementioned opinion, the processing of the data is permitted due to compliance with a legal obligation, in accordance with Article 6 GDPR. The same reasoning applied, according to the contents of the aforementioned memorandum, to the reference in invitation No. ... for the convening of the Regular Economic Committee of Municipality X, as well as to the publication of Decision No. ... of the Economic Committee of Municipality X (protocol No. ...) on the Diavgeia website.

3

Furthermore, with the aforementioned memorandum, it is argued that with her application number ... to the Municipality of X, the complainant requested the withdrawal of the document of the decision of the Mayor of X and expressed her dissatisfaction with the posting of the decision on the Diavgeia website. However, according to the contents of the aforementioned memorandum, the complainant did not

explicitly exercise her right to deletion of her personal data, in accordance with Article 17 of the GDPR and Article 34 of Law 4727/2020. Subsequently, the data protection officer of the entity issued opinion number ..., in which it is stated that decision number ... of the Mayor of X (reference number ...) constitutes an administrative act that must be posted on the Diavgeia website based on Article 76 paragraph 3 subparagraph (h) of Law 4727/2020, while Article 79 of Law 4727/2020, regarding the protection of personal data during the posting of administrative acts, provides, according to the aforementioned opinion, a broad and case-by-case evaluable framework for application and provision of reservations, which allows for the posting of any act, with the above reservations. Consequently, with the aforementioned opinion, the data protection officer of the entity proposed that the complainant's request be rejected as legally and factually unfounded.

Finally, with the aforementioned memorandum, it was communicated to the Authority that following the notification regarding the submission of the aforementioned complaint through the Authority's document G/EX/2829/19-11-2021, the entity proceeded to revoke decision number ... (reference number ...) and remove it from the Diavgeia website, in order to satisfy the complainant's request for the right to deletion of personal data, interpreting, according to its claims, the aforementioned complaint as an "indirect request to satisfy this right" and subsequently issued a new decision number ... of the Mayor (reference number ...) and posted it on the Diavgeia website (ADA: ...).

At the same time, the complainant sent the documents with reference numbers G/IN/195/12-1-2022 and G/IN/250/13-1-2022, supplementing the aforementioned complaint to the Authority, with which she, on the one hand, notified the Authority of the posting of the new decision number ... (ADA: ...), emphasizing that the reference to her as "Head of the Technical Services Department of the Municipality" still allows for her identification, and on the other hand, requested a copy of the opinions of the entity. Following the receipt of this, the complainant sent to the Authority her supplementary memorandum with reference number G/IN/1546/1-2-2022 regarding the aforementioned complaint, in which she counters the entity's claim that the reference to her personal data in decision number ... of the Mayor of X was made in accordance with Article 24 paragraph 1 subparagraph (d) of Law 4624/2019, as, according to the contents of the aforementioned memorandum, this assessment is not mentioned either in the contested decision or in the opinion dated ... of the Data Protection Officer of the Municipality, while regarding the full reference of her details in the documents with reference numbers ... Invitation to Convene the Regular Economic Committee of the Municipality of X and ... Decision of the Economic Committee of the Municipality of X, the complainant points out that it is not explained how the publication was necessary to protect the rights of third parties, as claimed by the entity. To support her claims, the complainant submitted with the aforementioned supplementary memorandum decision number ... of the Economic Committee of the Municipality of X, posted on the Diavgeia website, concerning another employee of the Municipality, in which there has been a complete anonymization of the employee's details. Furthermore, the complainant reiterated that with her application number ... to the Municipality of X, she exercised her right to deletion, as she requested the immediate revocation of the contested decision from the "Diavgeia" website, while she emphasized that otherwise it is not explained by the entity why the issuance of the opinion dated ... of the Data Protection Officer of the Municipality was requested. Finally, the complainant reiterated the claims she presented to the Authority with her document G/IN/195/12-1-2022 regarding the continued violation of her personal data by the new decision number ... of the Mayor (ADA: ...) that concerns her, and requested the Authority to examine the aforementioned decision within the framework of the complaint with reference number G/IN/6880/25-10-2021 and to order its removal from the Diavgeia website.

Following the examination of the file's elements, the Authority sent the documents with reference numbers G/EXAM/1236/01-06-2022 and G/EXAM/1238/01-06-2022 to the complainant and the entity respectively, in order to discuss the aforementioned complaint before the Plenary of the Authority on ..., during which session, which

5

The meeting was held via videoconference, with the complainant A present, accompanied by her attorney Panagiota Papadopoulou (Bar Registration No. ...), as well as B, attorney (Bar Registration No. ...), the data protection officer of the respondent, in order to provide clarifications on issues raised

by the President and the Members of the Authority, given that the data protection officer, as the Authority has repeatedly pointed out, does not have the capacity to represent the data controller according to the applicable regulations for the position of the data protection officer, as data protection officers, in the performance of their duties, enjoy autonomy and independence, which is incompatible with supporting the legality of personal data processing actions by the data controller and may create a conflict of duties with the role of the representative of the data controller.

During this meeting, the parties were granted a deadline to submit written statements to further support their claims until Following this, the complainant timely submitted the document with reference number Authority G/EIS/8184/22-06-2022, in which she reiterated the claims she had previously made before the Authority and rebutted claims made by the data protection officer during the aforementioned meeting, while the respondent did not submit a statement.

The Authority, after examining the elements of the file and what emerged from the hearing before it and the statements of the parties, having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1 See Guidelines on Data Protection Officers, Article 29 Working Party, as last revised and approved on April 5, 2017, WP243, pp. 22-23. Additionally, see the Authority's press release (reference number G/EX/568/23-01-2020) regarding the prohibition of representation of data controllers by data protection officers before the Authority, available on the Authority's website www.dpa.gr (<https://www.dpa.gr/el/enimerwtiko/deltia/deltio-typoy-shetika-me-tin-ekprosopisi-ton-ypeythynon-epexergasias-enopion-tis>) as well as DPA 26/2019 and DPA 32/2022, available on its website.

6

1. Because from the provisions of Articles 51 and 55 of the General Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data (hereinafter GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data.

2. Because according to Article 4, point 1) of the GDPR, personal data is defined as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person," while according to Recital 26 of the GDPR: "The principles of data protection should apply to any information concerning an identified or identifiable natural person. To determine whether a natural person is identifiable, all means reasonably likely to be used should be considered, such as the separation of that person, either by the data controller or by a third party for the direct or indirect identification of the natural person [...] The principles of data protection should therefore not apply to anonymous information, that is, information that does not relate to an identified or identifiable natural person or to personal data that has been made anonymous in such a way that the identity of the data subject can no longer be ascertained." According to Opinion 04/2007 of the Article 29 Working Party, a natural person is an individual "whose identity can be established," even if their identity is not yet known, based on identifying elements. Specifically, the identification of a person's identity "is normally achieved based on specific

2 See Opinion 04/2007 of the Article 29 Working Party on the definition of personal data, June 20, 2007, WP 136, pp. 12 et seq.

7

information referred to as "identification data" that is in a particularly privileged and close relationship with the specific individual. Examples of such information include various external characteristics of the appearance of the said person, such as height, hair color, clothing, etc., or some attribute of the person that cannot be immediately perceived, such as profession, position, name, etc. Furthermore, according to the aforementioned Opinion, the identification of a person's identity can be made "directly from the

name or indirectly from a telephone number, vehicle registration number, social security number, passport number, or from a combination of significant criteria that allow for their identification by narrowing down the range of the group to which they belong (age, profession, place of residence, etc.)," while "the 'verification of identity' does not only mean the possibility of retrieving the name and/or address of a person, but also includes potential identification through location, connectivity, and drawing conclusions."³

3. Because with Chapter IA of Law 4727/2020 (Government Gazette A' 184) the obligation to publish administrative acts issued by the entities and bodies referred to in Article 76 of the aforementioned law on the Internet was regulated, and this publication of administrative acts on the Internet, when they contain personal data, constitutes wholly or partially automated processing⁴, therefore processing subject to the regulatory scope of Articles 2 par. 1 of the GDPR and 2 of Law 4624/2019. It is particularly noted regarding Decision No. ... of the Mayor of X, that as previously mentioned in consideration 2 and as has already been ruled by the case law of the CJEU and the Authority⁵, the mere reference to some attribute of the person, such as in this case, the attribute of the complainant as Head of the Technical Service of the Municipality of X, in combination with the other information listed in the contested published act, constitutes identifying characteristics that contribute to the determination of her identity by third parties, primarily from her professional and social environment, but also from an unlimited additional number of individuals – users, due to the free access of citizens to the Diavgeia program.

4. Because the Authority, already with Opinion 1/2010, which was called upon to provide an opinion on a draft law regarding the mandatory posting on the Internet of legislative and various categories of administrative acts (regulatory and individual), had pointed out, among other things, that a general reservation in favor of personal data legislation would not be successful, as it gives the impression to the bodies that will be called to implement the law that the issue of the agreement of the provisions of the law with the provisions of personal data legislation remains open, which would create confusion, legal uncertainty, and an unjustified burden on the Personal Data Protection Authority with questions and appeals. Nevertheless, the general reservation in favor of personal data legislation was introduced with Article 5 of Law 3861/2010 (Government Gazette A' 112), with the sole clarification that acts containing sensitive personal data are not published, while a similar regulation was established with Article 79 of Law 4727/2020 (Government Gazette A' 184), which replaced Law 3861/2020, with the clarification that acts containing special categories of personal data and personal data concerning criminal convictions and offenses are not published. The Authority, with subsequent documents⁶ and subsequent decisions⁷, has reiterated that the general reservation in favor of personal data legislation creates problems, as due to the wording, it creates the impression that the administrative bodies called to implement the relevant provision must judge ad hoc whether the posting of a specific act is in accordance with the provisions on the protection of personal data, while the Authority has received numerous inquiries from administrative entities regarding the interpretation and application of this provision in specific cases (especially before the introduction of the GDPR), as well as complaints from citizens, whose data...

6 See, for example, with reference number Authority G/EX/5209/30-07-2012, para. 3, with reference number Authority G/EX/6371/09-10-2013, para. A).

7 APDPX 45/2016, para. 9, available on its website.

9. Posted on the internet. The Authority has repeatedly pointed out that, moreover, the establishment of criteria for the selection of data to be posted online, which will aim to limit the posted acts to those that essentially serve transparency without abolishing the right to the protection of personal data, has also been set forth by the case law of the Court of Justice of the European Union.

5. Since, according to the provisions of Article 4, point 7 of the GDPR, the data controller is defined as "the natural or legal person, the public authority, the service, or another body that, alone or jointly with others, determines the purposes and means of processing personal data; when the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State." According to the Guidelines 07/2020 of the European Data Protection Board regarding

the concepts of the data controller and the processor, the operational criterion is fundamental for determining the data controller. That is, the data controller is the one who determines the purpose and/or at least the essential elements of the means of processing. Furthermore, according to the aforementioned Guidelines, in cases where the law imposes a duty or obligation on someone to collect and process certain data, the purpose of the processing is usually determined by law, and the data controller will be the one designated by law to fulfill that purpose, that public duty. In public administration, the concept of the data controller presupposes to some extent an autonomous organizational structure, while the operational criterion is primarily linked to the powers conferred by law to a specific authority, service, or legal entity under public law, which must also be exercised in practice by their entities. According to the aforementioned, the Municipality of X constitutes the data controller for the aforementioned forms of processing.

6. Since Article 5, paragraph 1 of the GDPR sets forth the principles that must govern processing. Specifically, according to paragraph 1 of the aforementioned article, it is provided, among other things, that personal data shall be processed lawfully and fairly in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency," point a), collected for specified, explicit, and legitimate purposes and not further processed in a manner that is incompatible with those purposes ("purpose limitation," point b), adequate, relevant, and limited to what is necessary for the purposes for which they are processed ("data minimization," point c), and accurate and, when necessary, kept up to date; all reasonable measures must be taken to ensure the immediate deletion or correction of personal data that are inaccurate, in relation to the purposes of the processing ("accuracy").

7. Since the provision of Article 5, paragraph 2 of the GDPR specifically provides for the principle of accountability, according to which the data controller is responsible and must be able to demonstrate compliance with the principles of processing established in the aforementioned paragraph 1 of Article 5. This principle is a central element of the new compliance model introduced by the GDPR, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions. Furthermore, the data controller, according to this principle, bears the additional duty to demonstrate itself and at any time its compliance with the principles of Article 5, paragraph 1 of the GDPR, both to the data subject and, in particular, before the supervisory data protection authorities.

11

8. Whereas according to Article 6, paragraph 1 of the GDPR: "1. Processing shall be lawful only if and to the extent that at least one of the following applies: (...) (c) processing is necessary for compliance with a legal obligation to which the controller is subject, (...)"

9. Whereas in order for personal data to be processed lawfully, that is, processed in accordance with the requirements of the GDPR, the conditions for the application and adherence to the principles of Article 5, paragraph 1 of the GDPR must be cumulatively fulfilled. The existence of a lawful basis (Article 6 GDPR) does not exempt the controller from the obligation to adhere to the principles (Article 5, paragraph 1 GDPR) regarding the legitimacy, necessity, proportionality, and the principle of data minimization. In the event that any of the principles set out in Article 5, paragraph 1 GDPR are violated, the processing in question is deemed unlawful (contrary to the provisions of the GDPR) and the examination of the conditions for the application of the legal bases of Article 6 GDPR is unnecessary. Thus, the unlawful collection and processing of personal data in violation of the principles of Article 5 GDPR is not remedied by the existence of a lawful purpose and legal basis.

10. Whereas Article 24, paragraph 1 (d) of Law 4624/2019 stipulates that: "1. The processing of personal data by public authorities for a purpose other than that for which the data were collected is permitted when such processing is necessary for the performance of the tasks assigned to them and provided that it is: (...) (d) necessary for the prevention of serious harm to the rights of another person; (...)"

14 CJEU, C-496/17, Deutsche Post AG v Hauptzollamt Köln, January 16, 2019, para. 57.

15 See also Council of State 517/2018, para. 12: "[...] in order for personal data to be processed lawfully, it is required in every case that the conditions of Article 4, paragraph 1 of Law 2472/1997 are

cumulatively met, which, among other things, stipulates that data must be collected and processed in a fair and lawful manner, for specified and legitimate purposes... Provided that the conditions of Article 4, paragraph 1 of Law 2472/1997 (lawful collection and processing of data for specified and legitimate purposes) are met, it is further examined whether the conditions of the provision of Article 5, paragraph 2 of Law 2472/1997 [legal bases] are also met.” Also, see Council of State in Plenary 2285/2001, para. 10: “[...] Only if the above basic conditions are met do the provisions of Articles 5 and 7 of Law 2472/1997 apply, which impose as an additional, in principle, condition for the lawful processing of personal data of a specific person, the consent of that person.”

16 Hellenic Data Protection Authority 38/2004, Hellenic Data Protection Authority 43/2019, Hellenic Data Protection Authority 44/2019, available on its website.

12

11. Whereas in Opinion 1/2020, the Authority pointed out regarding the provisions of Law 4624/2019 the following: “According to the explanatory report of the law, Articles 24, 25, and 26 provide or create a ‘national legal basis’ for the processing of personal data for a purpose different from that for which the data were initially collected. (...) the GDPR does not authorize the national legislator to establish new ‘national legal bases,’ as mentioned in the explanatory report, but only to specify the legal bases of Article 6, paragraph 1, points (c) and (e) of the GDPR, under the conditions and guarantees provided by the provisions of paragraphs 2 and 4 of Article 6 GDPR. Furthermore, from the provision of Article 6, paragraph 4 GDPR regarding further processing for other purposes, which are different but compatible with the purposes of the initial collection, it follows that the national legislator is not obliged to take implementing measures for further processing since the GDPR itself establishes the criteria under (a) to (e) of that paragraph 4.

However, even if it is considered that the national legislator was authorized by the GDPR to establish ‘national legal bases’ for the further processing of data under Article 6, paragraph 4 GDPR, these should only constitute a specification of the legal bases of Article 6, paragraph 1, points (c) and (e) of the GDPR, should respect the principles of legality of Article 5, paragraph 1 GDPR, and in particular the purpose limitation principle under Article 5, paragraph 1, point (b) GDPR, should be a necessary and proportionate measure in a democratic society to ensure the purposes referred to in Article 23 with the provision of relevant substantive and procedural guarantees, should be formulated clearly and precisely, and their application should be predictable for individuals subject to them according to the case law of the CJEU and the ECHR (recital 41) (...) The provisions of Articles 24, 25, and 26 of the law do not meet any of the above substantive and procedural conditions and guarantees (...).”

12. Whereas, according to Article 79, paragraph 1 of Law 4727/2020 “Digital Governance (Incorporation into Greek Legislation of Directive (EU) 2016/2102 and Directive (EU) 2019/1024) Electronic Communications (Incorporation into Greek Law of

13

Directive (EU) 2018/172) and other provisions” (Government Gazette A’ 184) concerning the Diavgeia program: “1. The posting of acts referred to in Article 76 on the Internet and the organization of information searches is carried out subject to national and EU rules for the protection of individuals from the processing of personal data. Acts that include special categories of personal data and personal data concerning criminal convictions and offenses, as defined in the applicable legislation, are not posted.”

13. Whereas, according to the historical context of the present case, by Decision No. ... and following its revocation, by Decision No. ... of the Mayor of X, which were posted on the Diavgeia program, it was decided, in accordance with the provisions for the guarantees of impartiality of administrative bodies established by Article 7 paragraphs 1 and 2 of the Code of Administrative Procedure (Law 2690/1999, Government Gazette A’ 45), to exempt the complainant from any future action aimed at an individual or collective administrative act concerning the business of a citizen who has filed a complaint against the complainant. According to the claims of the respondent, the aforementioned acts fall within the scope of Article 76 paragraph 3 subparagraph (h) of Law 4727/2020 (Government Gazette A’ 184) on Digital Governance, according to which “The following acts are posted on the internet: (...) (h) acts of appointment, acceptance of resignation, replacement or dismissal of Service, General and Special

Secretaries of Ministries, Coordinators of Decentralized Administrations, and Executive Secretaries of Regions, members of collective governing bodies of public entities, of public law legal entities, of entities of the broader public sector, and entities of local government organizations of the first and second degree,” and, therefore, according to these claims of the respondent, there is a legal basis for the processing of the complainant's personal data based on Article 6 paragraph 1 letter (c) of the GDPR. Furthermore, the respondent invokes the provisions of Article 79 paragraph 1 of Law 4727/2020 (Government Gazette A' 184), which stipulates that the posting under Article 76 of the same law is carried out subject to the rules for the protection of individuals from the processing of personal data and which, in his opinion, leads to a broad and case-by-case assessed framework of application and provision of reservations, which allows for the posting of any act, with the aforementioned reservations.

14. Whereas the respondent did not specify to which of the categories referred to in Article 76 paragraph 3 subparagraph (h) of Law 4727/2020 (Government Gazette A' 184) the decision to exempt the complainant (appointment, acceptance of resignation, replacement or dismissal) belongs, while based on point 7 of Decision No. ... and following its revocation, based on point 7 of Decision No. ... of the Mayor of X, no collective body has been established to conduct an on-site inspection of the specific business and, consequently, these decisions of the Mayor cannot pertain to the status of the complainant as a member of a relevant collective body. Therefore, the decision in question to exempt the complainant under Article 7 paragraphs 1 and 2 of the Code of Administrative Procedure (Law 2690/1999, Government Gazette A' 45) does not constitute an act falling within the provision of Article 76 paragraph 3 subparagraph (h) of Law 4727/2020 (Government Gazette A' 184) invoked by the respondent, and there is no obligation under this provision for its posting on the Diavgeia program.

15. Whereas the respondent does not invoke, as a legal basis for the posting of the contested decisions of the Mayor of X on the Diavgeia program, any provision other than the aforementioned Article 76 paragraph 3 subparagraph (h) of Law 4727/2020 (Government Gazette A' 184), nor is there any provision in another provision of that article for the posting of acts imposing the exemption of an employee under Article 7 of the Code of Administrative Procedure (Law 2690/1999, Government Gazette A' 45). Specifically, in case (k) of Article 76 paragraph 3 of Law 4727/2020 (Government Gazette A' 184), it is stipulated that: “The following acts are posted on the internet: (k) individual administrative acts, the publication of which is provided for by a special provision of law.”, and according to Article 6 paragraph 3 of Ministerial Decision No. 14492 EΞ 2021 (Government Gazette B' 2157) for the regulation of detailed and technical issues for the implementation of Chapter IA' Digital Transparency - Diavgeia Program of Law 4727/2020: “(...) In the category 'other individual administrative acts' only individual administrative acts that are published according to a special provision of law either in the Government Gazette, or in the daily press, or on the website or at the premises of the entity are included. (...)”, while according to Opinion No. 65/2011 of the State Legal Council “as long as the applicable special legislation does not provide, for the reasons that...

15. Since the legislator chose not to provide for mandatory publication, neither is the posting on the internet, as a substitute for it, mandatory, with the relevant publicity being ensured, in any case, by adhering to the procedure outlined by the applicable provisions, within the limits and extent as specified in each case. Given that there is no legal provision for the mandatory publication of the decision to exclude the complainant, according to Article 7 of the Code of Administrative Procedure (Law 2690/1999, Government Gazette A' 45), nor is the relevant provision invoked by the respondent, Article 76 paragraph 3 subparagraph k) of Law 4727/2020 (Government Gazette A' 184) does not provide a legal basis for the contested posting in the Diavgeia program.

16. Therefore, the aforementioned posting of Decision No. ... and following its revocation, Decision No. ... of the Mayor of X, does not find a legal basis in Article 6 paragraph 1 subparagraph c) of the GDPR, as there is no requirement for the compliance of the data controller with a legal obligation.

17. Furthermore, the respondent further invoked the provision of Article 24 paragraph 1 subparagraph d) of Law 4624/2019 (Government Gazette A' 137), claiming that the said processing was permissible under the necessity of fulfilling the duties of the Mayor of X, as it was necessary to prevent serious harm to the rights of another person. As previously mentioned in consideration 11, with Opinion 1/2020, the Authority has ruled that the GDPR does not authorize the national legislator to establish

new "national legal bases," but only to specify the legal bases of Article 6 paragraph 1 subparagraphs c) and e) of the GDPR, under the conditions and guarantees provided by the provisions of paragraphs 2 and 4 of Article 6 of the GDPR. Therefore, the provisions of Article 24 paragraph 1 subparagraph d) of Law 4624/2019 (Government Gazette A' 137) are taken into account by the Authority only to the extent that they constitute a specification of the legal bases established by the EU legislator for the processing of personal data.

18. In the case at hand, given that, as previously mentioned in consideration 16, Article 6 paragraph 1 subparagraph c) of the GDPR cannot apply as a legal basis for the processing in question, the provisions of Article 24 paragraph 1 subparagraph d) of Law 4624/2019 (Government Gazette A' 137) invoked by the respondent cannot apply.

19. Based on the aforementioned in the immediately preceding considerations, the posting of Decision No. ... and following its revocation, Decision No. ... of the Mayor of X, took place in violation of Article 6 paragraph 1 subparagraph c) of the GDPR, and the principle of legality enshrined in Article 5 paragraph 1 subparagraph a) of the GDPR. Given that there is a lack of compliance with the principle of legality as provided in Article 5 paragraph 1 subparagraph a) of the GDPR and since, according to what is stated in consideration 9, the fulfillment of the conditions for the application and adherence to the principles of Article 5 paragraph 1 of the GDPR is cumulatively required for personal data to be lawfully processed, the examination of the fulfillment of the other principles of lawful processing of data based on Article 5 is unnecessary regarding the contested postings in the Diavgeia program.

20. Regarding the posting in the Diavgeia program of Decision No. ... of the Economic Committee of the Municipality of X, which decides on the appointment of a lawyer to defend the complainant concerning the complaint submitted against her by a citizen and which contains personal data of the complainant, the respondent also invoked the provision of Article 24 paragraph 1 subparagraph d) of Law 4624/2019 (Government Gazette A' 137), claiming that the said processing was permissible under the necessity of fulfilling the duties of the Mayor of X. According to the provisions of Article 76 paragraph 3 subparagraph k) of Law 4727/2020 (Government Gazette A'184) and Article 6 paragraph 3 of Ministerial Decision No. 14492 EΞ 2021 (Government Gazette B' 2157) for the regulation of detailed and technical issues for the implementation of Chapter IA' Digital Transparency - Diavgeia Program of Law 4727/2020, as mentioned in consideration 15, published individual administrative acts include, in addition to those published in the Government Gazette, those which receive another form of publicity - based on more specific provisions.

17

provisions - and subsequently published on the internet. Therefore, given that there is an obligation for the decisions of the Economic Committee of the Municipality to be published in accordance with the provisions for the publication of decisions of the municipal council and posting on the Municipality's website, pursuant to Article 75 paragraph 12 of Law 3852/2010 (Government Gazette A' 87), as amended by Article 77 of Law 4555/2018 (Government Gazette A' 133), the Authority finds that the posting of Decision No. ... of the Economic Committee of Municipality X in the Diavgeia program took place primarily based on Article 6 paragraph 1 point (c) of the GDPR, as the posting is deemed necessary for compliance with a legal obligation of the data controller, arising from Article 76 paragraph 3 point (k) of Law 4727/2020 (Government Gazette A'184).

20. Since according to Article 75 paragraph 6 of Law 3852/2010 (Government Gazette A' 87), as amended by Article 77 of Law 4555/2018 (Government Gazette A' 133), the invitation of the Economic Committee is published on the Municipality's website. Therefore, the posting of the above-mentioned Decision No. ... Invitation for the Convocation of the Regular Economic Committee of Municipality X on the Municipality's website is deemed necessary for compliance with a legal obligation of the data controller and consequently there is, in principle, a legal basis for this processing according to Article 6 paragraph 1 point (c) of the GDPR.

21. Since, according to the aforementioned in consideration 9, it should be examined whether in each case the principles of Article 5 of the GDPR are met for the posting of Decision No. ... of the Economic Committee of Municipality X in the Diavgeia program and the posting of Decision No. ... Invitation for the Convocation of the Regular Economic Committee of Municipality X on the Municipality's website, particularly the principle of proportionality, as specifically detailed through the principle of data

minimization under Article 5 paragraph 1 point (c) of the GDPR. The aim of the legislative provisions for the posting of administrative decisions and acts on the Internet is, according to the explanatory report of the previous Law 3861/2010 (Government Gazette A'112), to achieve maximum publicity of government policy and administrative action, as the broad publicity and access to information provided by means of online communication ensure the transparency of state action and consequently the accountability, responsibility, and transparency on the part of the entities exercising public authority. The assurance of the correct and appropriate use of public resources by public administration constitutes a legitimate purpose both in the sense of Article 5 paragraph 1 points (b) and (c) of the GDPR, as well as in the sense of Article 8 paragraph 2 of the ECHR concerning "the welfare of the country"; however, it must be verified whether the said restriction of the right to the protection of personal data of the complainant is necessary, appropriate, and strictly proportional to achieve the legally pursued purpose, in a democratic society according to the established case law of the ECHR. Furthermore, as the CJEU has ruled, regarding the necessity of the measure of publicizing personal data on the internet, the purpose of the contested publication cannot be pursued without taking into account that a compromise must be made between the purpose and the fundamental rights to privacy and the protection of personal data.

22. Since in the case under consideration, the purpose of posting the acts of the Economic Committee of the Municipality on the internet is to enhance transparency regarding the financial management of the Municipality and the ability of citizens to monitor it, the mention of the details of the employee to whom the appointment of a lawyer pertains does not constitute a necessary condition for the realization of the above legitimate purpose. Moreover, the Authority has previously pointed out that, from the combination of the provisions with the

19

which introduces a reservation in favor of the legislation on personal data regarding the posting of acts on the internet and the provisions concerning the fundamental conditions for the legality of processing personal data, it follows that the acts to be posted must include only the absolutely necessary personal data, and no more than what is required in light of the purpose of transparency. Furthermore, as claimed by the complainant, the Municipality has proceeded to post a corresponding content Decision of the Economic Committee on the Diavgeia platform, concerning another employee, with anonymization of their details (name, rank, position) and reference only to the municipal service in which they serve. In this regard, it is determined that in this case, the respondent, by posting the Decision No. ... of the Economic Committee of Municipality X on the Diavgeia platform and the Invitation No. ... for the Regular Meeting of the Economic Committee of Municipality X on the municipality's website with full reference to the complainant's details, violated the principle of data minimization under Article 5(1)(c) of the GDPR, especially since for achieving transparency, there exists a much milder (in relation to the nominal posting on the internet) means of accessing public documents, provided that the conditions of Article 5 of the Code of Administrative Procedure (Law 2690/1999) are met.

23. Finally, because Article 17(1) of the GDPR states: "1. The data subject has the right to request the controller to erase personal data concerning them without undue delay and the controller is obliged to erase personal data without undue delay, if one of the following reasons applies: a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed, b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a) and there is no other legal basis for the processing, c) the data subject objects to the processing according to Article 21(1) and there are no overriding legitimate grounds for the processing or the data subject objects to the processing according to Article 21(2), d) the personal data have been unlawfully processed, e) the personal data must be erased for compliance with a legal obligation under Union law or the law of a Member State to which the controller is subject, f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1)."

24. Because from the combination of Articles 5(2) and 17(1), it follows that the controller bears the burden of proof of the legality of the processing of the data, as they are responsible for the legality of the processing. As the Authority has ruled, the data subject is not obliged to exercise their right in a

specific manner, as such a requirement is not imposed by the GDPR, which conversely states that the controller must facilitate the exercise of the rights of data subjects, while the exercise of the right of access does not need to take place in a specific form or ceremoniously, e.g., by invoking the provisions of the GDPR or by explicitly referring to the exercise of it. The right to erasure of the data subject is satisfied in various ways depending on the case, e.g., by destroying the file, by permanently eliminating their data, or by permanently anonymizing their data.

25. Because, as emerges from the above history, according to the claims of the complainant, with her application No. ... to Municipality X, she requested the immediate withdrawal of Decision ... of the Mayor of X from the Diavgeia platform, however, with the response/opinion dated ... from the data protection officer of the Municipality,

21

Her request was rejected. In this regard, it was argued both with the document no.

G/EIS/8392/24-12-2021 from the data protection officer of the respondent, as well as by the data protection officer himself during the hearing on ..., that, with her application no. ..., the complainant requested the withdrawal of the document of the decision of the Mayor of X and expressed her dissatisfaction with the posting of the decision on the Diavgeia program; however, she did not explicitly exercise her right to erasure of her personal data, according to Article 17 of the GDPR and Article 34 of Law 4727/2020.

26. However, it emerges from the explicit request contained in her application no. ... to the Municipality of X, that the complainant requested the immediate withdrawal of the contested decision from the Diavgeia program. Furthermore, it is noted that although, according to his claims, the respondent did not interpret the application no. ... of the complainant as an explicit exercise of the right to erasure, from the entirety of the file's elements, it appears that in response to the above application, he referred to the data protection officer of the Municipality, who was also the final author of the relevant opinion/response to the above application.

27. As already determined above, the processing of the complainant's personal data through the posting of Decision ... of the Mayor of X on the Diavgeia program took place in violation of Articles 5(1)(a) and 6(1)(c) of the GDPR; consequently, the respondent was obliged to satisfy the complainant's right to erasure, according to the provision of Article 17(1)(d) of the GDPR. However, from the history of the present case, it appears that with the response/opinion dated ..., the data protection officer of the respondent recommended the rejection of the request for the withdrawal of the aforementioned Decision from the Diavgeia program. Subsequently, the respondent did not proceed, as he was obliged, to satisfy the right to erasure of the complainant's personal data through the withdrawal of the aforementioned act from the Diavgeia program, according to Article 17(1)(d) of the GDPR; on the contrary, he maintained the said posting as it was until its withdrawal on 22-12-2021, 33 See also DPA 21/2021, available on its website.

22

following the receipt of the document no. G/EX/2829/19-11-2021 from the Authority, which requested the submission of his views on the complaint.

28. Because, following the above, from the elements of the file, and from what emerged from the hearing process and the submitted memoranda, the Authority finds a violation of Articles 5(1)(a) and (c), 6(1)(c), and 17 of the GDPR and considers that there is a case for exercising its corrective powers according to Article 58(2) of the GDPR, as well as Article 39 of Law 4624/2019, taking into account the Guidelines 04/2022 for the calculation of administrative fines under the GDPR of the European Data Protection Board³⁴ and the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 of the Article 29 Working Party³⁵. In evaluating the data by the Authority, in order to select the appropriate and corrective measure, the following elements are taken into account, based on the terms of Article 83(2) of the GDPR:

- “the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the degree of damage suffered” (Article 83(2)(a) of the GDPR). Therefore, it is taken into account that Decision no. ... remained posted until ... on the Diavgeia program, while following its

withdrawal, Decision no. ... of the Mayor of X currently remains posted on the Diavgeia program³⁶, and the same applies to Decision no. ... of the Economic Committee of the Municipality of X³⁷; on the contrary, the document no. ... Invitation to Convene the Regular Economic Committee of the Municipality of X was not found on the Municipality's website³⁸. The Authority further takes into account, according to what is stated in

34 European Data Protection Board, Guidelines 04/2022 for the calculation of administrative fines under the GDPR, Ed. 2.1, May 24, 2023.

35 Article 29 Working Party, Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 WP 253, October 3, 2017.

36 Date of Access

37 Date of Access

38 Date of Access

23

Recital 75 of the GDPR,³⁹ and the fact that, according to common experience, in a small local community, damage consisting of harm to reputation or discrimination against an individual can have significant consequences for the data subject, especially in cases where, as is the case here, the position and status of the complainant are widely known at the local level,

- “any actions taken by the controller or the processor to mitigate the damage suffered by the data subjects” (Article 83(2)(c) GDPR). Therefore, it is taken into account that the respondent did not take any actions to limit the consequences of the breach for the complainant, prior to the receipt of the Authority's document No. G/EX/2829/19-11-2021 to provide opinions⁴⁰,

- “any relevant previous infringements by the controller or the processor” (Article 83(2)(e) GDPR). Therefore, it is taken into account that the Authority has not previously identified any infringement on the part of the respondent.

- “the degree of cooperation with the supervisory authority to remedy the infringement and mitigate its potential adverse effects” (Article 83(2)(f) GDPR). Therefore, it is taken into account that the respondent, following the receipt of the Authority's document No. G/EX/2829/19-11-2021, revoked Decision No. ... and replaced it with Decision No. ..., which, however, did not result in the absence of adverse consequences for the rights of the complainant⁴¹; on the contrary, as demonstrated above, this action constituted a new violation of the provisions of Article 6(1)(c) and Article 5(1)(a) GDPR.

- “the categories of personal data affected by the infringement” (Article 83(2)(g) GDPR). Therefore, it is taken into account that the processing concerns data whose dissemination causes immediate harm/difficulty to the individual⁴².

FOR THESE REASONS

The Authority

A) finds that the posting of Decision No. ... by the Mayor of X on the Diavgeia program constitutes a violation of Articles 5(1)(a) and 6(1)(c) GDPR and imposes, pursuant to Article 58(2)(h) GDPR, a monetary fine of two thousand (2,000) euros on the reported Municipality of X, for the reasons extensively analyzed in the reasoning of this decision,

B) finds that the posting of Decision No. ... by the Mayor of X on the Diavgeia program constitutes a violation of Articles 5(1)(a) and 6(1)(c) GDPR and issues a reprimand pursuant to Article 58(2)(b) GDPR to the reported Municipality of X, for the reasons extensively analyzed in the reasoning of this decision, and

C) orders, pursuant to Article 58(2)(d) GDPR, the Municipality of X, as the data controller, to immediately delete Decision No. ... by the Mayor of X from the Diavgeia program, for the reasons extensively analyzed in the reasoning of this decision, and to inform the Authority within a period of 20 (twenty) days from the receipt of this decision, regarding its implementation,

D) finds that the posting of Decision No. ... by the Economic Committee of the Municipality of X on the Diavgeia program and the posting of Invitation No. ... for the convening of the Regular Economic Committee of the Municipality of X on the Municipality's website constitute a violation of Article 5(1)(c) GDPR and imposes, pursuant to Article 58(2)(h) GDPR, a monetary fine of one thousand (1,000) euros on the reported Municipality of X, for the reasons extensively analyzed in the reasoning of this

decision,

E) orders, pursuant to Article 58(2)(d) GDPR, the Municipality of X, as the data controller, to immediately delete Decision No. ...

42 Ibid, p. 16.

25

Economic Committee of Municipality X from the Diavgeia program and the number of the invitation for the convening of the Regular Economic Committee of Municipality X from the Municipality's website, and their re-posting, in accordance with the provisions set forth in the reasoning of this document, for the reasons that are extensively analyzed in the reasoning of this document, and as it will inform the Authority within a deadline of 20 (twenty) days from the receipt of this document, for its implementation,

ST) finds a violation of Article 17 paragraph 1 of the GDPR by the reported Municipality X, to which it imposes, pursuant to Article 58 paragraph 2 point (h) of the GDPR, a monetary fine of two thousand (2,000) euros on the reported Municipality X, for the reasons that are extensively analyzed in the reasoning of this document,

Z) addresses, in accordance with Article 57 paragraph 1 point (c) of the GDPR and Article 13 paragraph 1 point (d) of Law 4624/2019, a recommendation to the legislator to proceed with legislative regulation for the establishment of criteria for the selection of personal data of natural persons to be posted online, which will aim to limit the posted acts to those that essentially serve transparency without abolishing the right to the protection of personal data.

The President

Konstantinos Menoudakos

The Secretary

Irini Papageorgopoulou